

26VECV00775 26VECV00775

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-27

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Tentative Ruling

Rize Credit Union v. Tsatinian,

Case no. 26VECV00775

Hearing date July 27, 2026

Defendant

Tsatinian's Motion to Set Aside Default Judgment

Plaintiff

Rize Credit Union, formerly known as SCE, sued defendant Tsatinian for collection and repossession on an automobile lease. Defendant was served via substitute service on 2/15/26 via service on his co-occupant Barbasian. See 2/18/26 Proof of Serv. Defendant, in pro se, moves to set aside the default, asserting he never received notice of this lawsuit. Plaintiff opposes.

Plaintiff

argues the motion is procedurally improper, as defendant failed to serve the motion on plaintiff. Defendant filed no proof of service as to this motion. Plaintiff did file substantive opposition, accompanied by supporting affidavits. The court will consider the motion.

Plaintiff

requests judicial notice of: (1) summons and complaint filed 2/6/26; (2) proof of substitute service filed 2/18/26; (3) 6/30/26 minute order; (4) Padilla declaration filed 7/13/26; (5) Espinoza declaration filed 7/13/26; (6) Curiel declaration filed 7/13/26; and (7) Abeshyan declaration filed 7/13/26. GRANTED pursuant to

Evid. Code §452(d).

Defendant

moves to set aside the 4/8/26 default and 4/9/26 default judgment as void, asserting he never received notice of this lawsuit. See Decl. Tsatinian, paras. 1-3. Defendant asserts he did not learn of this lawsuit until he independently checked court records. Id. at para. 4. Defendant does not dispute that substitute service was made at the address where he resides. Defendant offers no details explaining how or when he became aware of this lawsuit or explaining why he chose to check court records. Defendant fails to offer evidence, such as a declaration of Barbasian, defendant's co-occupant and the party on whom substitute service was purportedly made, regarding whether service was actually accomplished and whether documents were provided to defendant.

Plaintiff

argues the motion is unsupported by facts or details which would permit setting aside the default and default judgment. Plaintiff argues defendant's address, as confirmed by the Post Master, is the address where defendant resides and is the proper address for service. See Decl. Padilla, exh. 1. This is also the address listed on defendant's motion. See Mtn., p. 1. Plaintiff argues co-occupant Barbasian was informed of the contents of the summons and complaint when substitute service was made. See Decl. Padialla, exhs. 3-4.

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proof of service by a registered process server creates a rebuttable presumption that service was effective. The undisputed fact that the address used for service is indeed defendant's residence supports this presumption. However, California favors resolving disputes on their merits, and defendant filed this motion and expressed an intent to defend this litigation.

The

motion as presented lacks facts sufficient to permit the court to set aside the default. The court will continue the hearing to allow defendant to file supporting evidence, such as an affidavit stating when and where defendant learned of this lawsuit, or an affidavit from Barbasian explaining how defendant did not receive notice of this lawsuit.

CONTINUED

to 9/10/26. Defendant's supplemental filings, not to exceed 7 pages, to be filed by 8/24/26. Plaintiff's supplemental opposition, not to exceed 5 pages, due per code.